Township of NIPISSING
"Life the way it should be" 1888

The Corporation of the Township of Nipissing
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REPORT TO COUNCIL

Date: January 3, 2023

From: Kris Croskery-Hodgins, Municipal Administrator

Re: Updates to Required By-Laws

BACKGROUND/OVERVIEW

The Municipal Act requires municipalities to adopt and maintain policies and procedures regarding a number of items.

A review of Township By-laws revealed that the required policies and procedures for
a) The sale and disposition of land;
b) The delegation of its powers and duties; and
c) The manner in which the municipality will try to ensure that it is accountable to the public for its actions and that its actions are transparent to the public;
were found to be requiring updates and more inclusive of current practices.

FINANCIAL IMPACT

A change to the charge per lineal foot charged in Shore Road Allowance transactions was changed in the 2021-53 User Fee By-Law passed November 16, 2021 but was not updated in the Shore Road Allowance procedures. This will correct that oversight and ensure that $25 per frontage foot is charged on all applications received going forward.

SUMMARY

By-Law 2008-1211 provides a brief outline of Accountability, Transparency and Delegation of powers and duties.
Revisions to these By-laws have been drafted and provided for Council review. These documents detail practices in place to ensure accountability and transparency as well as provide detail on the delegation of powers and duties.

The compilation of three by-laws into one will provide a comprehensive coverage of the procedures for the Sale and Disposition of municipal land.

RECOMMENDATION:

It is recommended that Council adopt the following:
1) 2023 Accountability and Transparency By-Law; repealing By-Law 2008-1211 section 4. (a) and (b).

2) 2023 Delegation of Authority By-Law; repealing By-Law 2008-1211 section 4. (e).

3) 2023 Sale of Land By-Law; repealing By-Law 2008-1227, Sale of Land; By-Law 2007-1205, Development Expenses and By-Law 1196, Restating Council's Policy re Shore Road Allowances.

Respectfully,

Kris Croskery-Hodgins, Municipal Administrator

THE CORPORATION OF THE TOWNSHIP OF NIPISSING

BY-LAW NUMBER 2023-

Being a by-law to adopt an administrative policy to ensure Accountability and Transparency for The Corporation of the Township of Nipissing.

WHEREAS the *Municipal Act,* 2001, c. 25 S270(1)5. provides that a municipality shall adopt and maintain policies with respect to ensuring that it is accountable to the public for its actions, and the manner in which the municipality will try to ensure that its actions are transparent to the public;

NOW THEREFORE THE COUNCIL OF THE CORPORATION OF THE TOWNSHIP OF NIPISSING ENACTS AS FOLLOWS:

1. SHORT TITLE

1.1. This by-law may be cited as the "Accountability and Transparency Policy".

2. PURPOSE/OBJECTIVE

Council of the Township of Nipissing acknowledges that it is responsible to provide good government for its stakeholders in an accountable and transparent manner, guided by the following principles:

A. Encouraging public access and participation to ensure that decision making is responsive to the needs of its constituents and receptive to their opinions;
B. Delivering high quality services to our citizens; and
C. Promoting the efficient use of public resources.

Accountability, transparency and openness are standards of good government that enhance public trust. They are achieved through the Township of Nipissing adopting measures ensuring, to the best of its ability, that all activities and services are undertaken utilizing a process that is open and accessible to its stakeholders. In addition, wherever possible, the Township of Nipissing will engage its stakeholders throughout its decision-making process which will be open, visible and transparent to the public.

The objectives of this by-law are:

2.1. to ensure that the municipality is accountable to the public for its actions;

2.2. to provide procedures to ensure that its actions are transparent to the public;

2.3. to provide a procedure to ensure that this policy is maintained and updated as required by the *Municipal Act, 2001*;

3. DEFINITIONS

3.1. "Accountability" is the principle that the municipality is obligated to demonstrate and take responsibility for its actions, decisions and policies and that it is answerable to the public at large.

3.2. "Clerk" means the Clerk of the Township, including their successor and designate from time to time;

3.3. "Council" means the duly elected Municipal Council of the Corporation of the Township of Nipissing;

3.4. "Municipal Administrator" means the Municipal Administrator for the Township of Nipissing, including their successor and designate from time to time;

3.5. "Procedural By-Law" means the by-law in effect establishing the rules governing the proceedings of Council, the calling of meetings and the conduct of Members;

3.6. "Procurement Policy" means the by-law in effect establishing a policy concerning the procurement of goods and services;

3.7. "Public Notice By-Law" means the by-law in effect prescribing the form and manner for the provision of public notice under the *Municipal Act*, 2001.

3.8. "Township" means The Corporation of the Township of Nipissing.

3.9. "Transparency" is the principle that the municipality will conduct its business in an accessible, clear and visible manner and that its activities are open to examination by its stakeholders.

4. RESPONSIBILITIES AND AUTHORITIES

4.1. The Municipal Administrator is responsible for ensuring adherence to the Transparency and Accountability Policy and the by-laws and corporate policies supporting the goals of this Policy.

4.2. The Clerk shall review this Policy at the beginning of each term of Council and provide any recommendations or information to Council for approval where such action is considered necessary and in the best interest of the Corporation;

5. GENERAL PROVISIONS

The following are policies, procedures and practices that ensure the Township is transparent in its operations and that residents are not only aware of how decisions are made and carried out, but that they are able to participate as well:

- Council Procedure By-Law
- Public Posting and Distribution of Council Agenda Meeting Documentation
- Public Notice By-Law
- Procurement By-Law
- External Audit and Reports
- Sale and Disposal of Land By-Law
- Records Retention By-Law
- Social Media Policy
- Livestreaming of Council and Committee meetings on YouTube
- Posting of video recordings of livestreamed meetings of Council and Committees
- Appointment of an Integrity Commissioner
- Code of Conduct for the Council Members
- Municipal Election Procedures

5.4. Council shall maintain a formal complaint policy and procedure in place within the Township of Nipissing. This procedure shall be placed on the Township of Nipissing website for public access.

5.5. Internal accountability and ethical standards are governed by Council approved Human Resources Policies and Procedures for all municipal staff. These policies and procedures follow Ontario labour laws as well as containing policies addressing a Code of Conduct, Recruitment and Selection practices and maintaining a discrimination and harassment-free workplace.

6. ENACTMENT

This By-Law shall come into effect upon passage.
By-Law 2008-1211, 4. (a) and (b) are hereby repealed and replaced by this By-Law.

That this By-law shall come into force and effect immediately on the passing thereof.
Read a first, second and third time and passed this 3rd day of January, 2023.

THE CORPORATION OF THE
TOWNSHIP OF NIPISSING

_____
Tom Piper,
Mayor

_____
Kris Croskery-Hodgins,
Municipal Administrator

THE CORPORATION OF THE TOWNSHIP OF NIPISSING

BY-LAW NUMBER 2023-

Being a by-law respecting the delegation of authority to various officers for The Corporation of the Township of Nipissing.

WHEREAS the *Municipal Act,* 2001, c. 25 S270(1)6. provides that a municipality shall adopt and maintain policies with respect to the delegation of its powers and duties;

AND WHEREAS Section 23.1 of the *Municipal Act*, 2001, S.O. 2001, c. 25 authorizes a municipality to delegate its powers and duties to a person or body, subject to certain restrictions;

AND WHEREAS Section 224.(d) of the *Municipal Act*, 2001, S.O. 2001, c. 25 provides that a role of Council is to ensure that administrative policies, practices and procedures and controllership policies, practices and procedures are in place to implement the decisions of Council;

AND WHEREAS section 227 of the *Municipal Act*, 2001, S.O. 2001, c. 25 states that it is the role of the officers and employees of the municipality (a) to implement Council's decisions and establish administrative practices and procedures to carry out Council's decisions; (b) to undertake research and provide advice to Council on the policies and programs of the municipality; and (c) to carry out other duties required under this or any Act and other duties assigned by the municipality;

AND WHEREAS the Council of The Corporation of the Township of Nipissing has identified certain routine administrative functions to be delegated to staff to improve daily business efficiencies while continuing to adhere to the principles of accountability and transparency;

NOW THEREFORE THE COUNCIL OF THE CORPORATION OF THE TOWNSHIP OF NIPISSING ENACTS AS FOLLOWS:

1. SHORT TITLE

1.1. This by-law may be referred to as the "Administration of Authority By-Law".

2. DELEGATION PROVISIONS

2.1. Council delegates the powers, duties, and restrictions thereto as set out in the Schedules appended hereto, to those officers, employees or committees therein listed;

2.2. Notwithstanding the foregoing, Council retains the authority to make or reconsider, at any time and without notice, revoke any delegated power that has been delegated pursuant to this By-Law;

2.3. Except as otherwise required by law, should any position identified in this By-Law with delegated powers or duty be vacant, or no longer exist within the Corporation, the powers and duties of that position may be exercised by a person deemed to have authority of the position until such time as the position is either no longer vacant, or a new delegation for the corresponding delegated power or duty is approved;

2.4. Where the exercise of a delegated authority requires an expenditure of money, funding for the expenditure shall be included in a an approved budget and all relevant requirements of the Township of Nipissing Procurement By-Law in effect at the time of the expenditure shall be followed;

2.5. Where delegated authority includes execution of an agreement, the agreement shall be approved by the Municipal Administrator and/or legal counsel prior to its execution;

2.6. All relevant By-Laws and Resolutions of The Corporation of the Township of Nipissing shall apply to the exercise of delegated authority, as authorized by this By-Law, or any associated stand-alone delegation of authority By-law;

2.7. Council hereby confirms that it is of the opinion that all legislative powers under any Act delegated to an officer or an employee of the Township are minor in nature, within the meaning of Subsection 23.2(4) of the *Municipal Act*, S.O. 2001, c.25.

3. DEFINITIONS

3.1. "Act" means the *Municipal Act*, 2001, S.O. 2001, c. 25, as amended;

3.2. "Approval" includes authority to sign for approval and execute an agreement, contract, release, waiver, application or document intended to bind the Corporation and includes any renewal, amendment or termination thereof, and "Approve" has a corresponding meaning;

3.3. "By-Law" means this by-law and includes its Schedules;

3.4. "Chief Building Official" or "CBO" means the Chief Building Official, as duly appointed by By-Law;

3.5. "Clerk" means the Clerk for the Township of Nipissing, as duly appointed by By-Law;

3.6. "Corporation" means The Corporation of the Township of Nipissing;

3.7. "Council" means the elected Council of The Corporation of the Township of Nipissing;

3.8. "Delegation of Powers Policy" means a policy that has been approved by Council in accordance with section 270(1)6 of The Act;

3.9. "Fire Chief" means the Fire Chief for the Township of Nipissing, as duly appointed by By-Law;

3.10 "Legal Proceeding" means any court or administrative tribunal proceeding commenced by, or against, the Township;

3.11. "Municipal Administrator" means the Municipal Administrator for the Township of Nipissing, as duly appointed by By-Law;

4. NATURE AND SCOPE OF DELEGATION OF POWERS AND DUTIES

4.1. The authority to approve a matter as contained in any Schedule hereto appended is hereby delegated to the person or persons set out in Column 3 therein and shall be subject to any conditions or restrictions as contained in Column 5.

4.2. Where authority to approve a matter is delegated to any person under this By-Law, the Municipal Administrator may also exercise that authority;

4.3. Despite any provision of this By-Law, a delegate shall not approve any matter or execute any document unless the transaction or activity to which the matter or document relates has been approved by Council, and shall be deemed to be approved where such transaction or activity:

a. is included in the annual budget as adopted by Council; or
b. is included in a program, project or activity which has been approved by Council; or
c. is reasonably incidental to the authority given to the Municipal Administrator, to carry out their duties and responsibilities on behalf of the Township.

4.4. No provision of this By-Law shall be construed as waiving any provision of the Procurement By-Law, as may be amended from time to time, and the Procurement By-Law shall continue to apply to the procurement of goods and services on behalf of the Township;

4.5. Notwithstanding the foregoing, Council retains the authority to make or reconsider, at any time and without notice, revoke any delegated power that has been delegated pursuant to this By-Law.

5. APPOINTMENT OF SIGNING OFFICERS

5.1. The Mayor or Deputy Mayor, one required, and the Deputy Treasurer or the Fire Chief, one required, are hereby appointed signing officers of the Township and may jointly execute any document on behalf of the Township, specifically provided for in the Schedules appended.

6. GENERAL

6.1. Any reference to legislation, regulations or By-Laws in this By-Law shall be interpreted to include all amendments and any successor legislation thereof;

6.2. In the event that any provision or part of this By-Law is found to be invalid for any reason whatsoever, then the particular provision or part thereof shall be deemed to be severed from the remainder of the By-Law and all other provisions or parts thereof shall remain in full force and shall be valid;

6.3. In the event of any inconsistency between this By-Law and any other Township By-Law, the more restrictive provision shall prevail to the extent of the inconsistency;

6.4. Throughout this By-Law (i) the term "including" or the phrases "e.g.", or "for example" shall be interpreted to mean "including, without limitation"; (ii) the singular includes the plural and vice-versa; and (iii) any gender includes any other gender, unless the context requires otherwise;

6.5. This By-Law shall come into force and take effect on the date of passing.

Reference to Delegation in By-Law 2008-1211, 4.e., is hereby repealed and replaced by this By-Law.

Read a first, second and third time and passed this 3rd day of January, 2023.

THE CORPORATION OF THE
TOWNSHIP OF NIPISSING

_____
Tom Piper,
Mayor

_____
Kris Croskery-Hodgins,
Municipal Administrator

Schedule A
Delegation of Powers & Duties

#	DELEGATION	DELEGATE(S)	LEGAL AUTHORITY	CONDITIONS/RESTRICTIONS
1.	Develop, approve and implement administrative policies, procedures and practices in the exercise of authority under section 229 of the Act.	Municipal Administrator-Clerk-Treasurer	Municipal Act, 2001, S.O. 2001, c. 25, as amended, s 23.1 and s. 270	Update and maintain Policy Manual upon Council adoption
2.	Pay Equity Adjustments, Grid Movement Approvals, complete Performance Appraisals	Municipal Administrator-Clerk-Treasurer	Municipal Act, 2001, S.O. 2001, C. 25, as amended, s 23.1	Budget approvals, Approved Performance Appraisals in keeping with the Human Resources Administration and Policy Manual.
3.	Responsible for legislative requirements under the Ontario Health and Safety Act legislation.	Municipal Administrator-Clerk-Treasurer Fire Chief-MLEO-CEMC	Occupational Health and Safety Act, R.S.O. 1990, c. 0.1	
4.	Approval of all emergency expenditures deemed essential to mitigate the emergency incident	Municipal Administrator-Clerk-Treasurer Operations Superintendent Fire Chief-MLEO-CEMC		With regard to Procurement Policy when possible.
5.	Signing Authority for Agreements under By-Law and/or Pursuant to Tender Awards	Municipal Administrator-Clerk-Treasurer Mayor (as required)		
6.	Returning Officer, Responsible for Administration of all Municipal General Elections and All By-Elections for the Township of Nipissing	Municipal Administrator-Clerk-Treasurer	Municipal Elections Act, 1996, S.O. 1996, c. 32	Prepare and update forms and written procedures for all components of conducting an election.
7.	Issuance of Lottery Licences	Municipal Administrator-Clerk-Treasurer	Criminal Code (Canada) Order-in-Council 1413/08 Gaming Control Act, 1992	Compliance with all applicable AGCO Regulations.
8.	Records Management Oversight	Municipal Administrator-Clerk-Treasurer	Municipal Act, 2001, S.O. 2001, C. 25, as amended, S. 254	Per Records Retention Policy in effect by by-law.
9.	Freedom of Information and MFIPPA Co-Ordinator; All powers and duties under said	Municipal Administrator-Clerk-Treasurer	Municipal Freedom of Information and Protection of Privacy Act	Associated policy.

	Act			
#	**DELEGATION**	**DELEGATE(S)**	**LEGAL AUTHORITY**	**CONDITIONS/RESTRICTIONS**
10.	By Virtue of the Office: Commissioner of Oaths	Municipal Administrator-Clerk-Treasurer Deputy Clerk	Commissioner for Taking Affidavits Act. R.S.O. 1990, c. C. 17	
11.	Mediate and settle proceedings at the Assessment Review Board and Execute Minutes of Settlement of Assessment Review Board	Municipal Administrator-Clerk-Treasurer		MoS must be in the best interest of the Township, in opinion of the signing officer
12.	Approval of Tax approvals and corrections relating to gross manifest errors	Municipal Administrator-Clerk-Treasurer		
13.	Authority to enter into agreements with the Municipal Property Assessment Corporation (MPAC) for electronic download of property assessment information	Municipal Administrator-Clerk-Treasurer		
14.	Oversight of Procurement of Goods and Services	Municipal Administrator-Clerk-Treasurer	Procurement By-Law	
15.	Authority to enter into recurring annual agreements with respect to continuance of technical software support services, and or data licence agreements, subject to annual review and budget approval.	Municipal Administrator-Clerk-Treasurer		Budget approvals.
16.	Authority to enter into Client/Supplier agreements for IT professional services or technical support, as required, subject to project requirements, budget availability and review	Municipal Administrator-Clerk-Treasurer		Budget approvals.
17.	Approve Site Plan Control Agreements and Amendments to Site Plan Control Agreements	Land Planning Administrator	Planning Act, R.S.O. 1990, c.P.13,s.5(1)	Approval pertains only to agreements where the application is in full compliance with the Zoning By-Law. Council still has authority over site plan where zoning amendment is required.

#	DELEGATION	DELEGATE(S)	LEGAL AUTHORITY	CONDITIONS/RESTRICTIONS
18.	Removal or lifting of Holding Zone when conditions have been fulfilled	Land Planning Administrator	Planning Act, R.S.O. 1990, c.P.13,s.5(1)	Subsequent By-law to Council for Adoption to Repeal Holding Provision
19.	Activate and emergency plan and implement t municipal emergency control group notification	CEMC	Emergency Management Plan	
20.	Authority to take all proper measures for prevention, control and extinguishment of fires and protection of life and property and shall exercise all powers mandated by legislation	Fire Chief	Fire Protection and Prevention Act, 1997, S.O. 1997, c.4	
21.	Authorization to temporarily close Municipal Roads due to fire or emergency requirements.	Fire Chief in consultation with the Operations Superintendent		
22.	Authorization to close municipal parks – outdoor rink due to seasonal restrictions, inclement weather, and emergencies which could affect the health and well-being of the community	Operations Superintendent		
23.	Authorization to manage and perform maintenance, removals, and planting of trees within the Township's right-of-way and property	Operations Superintendent		
24.	Authority to execute applications for new entrance permits and culvert installations, provide written confirmation to applicant of diameter of culvert required	Operations Superintendent	Township By-Law	

#	DELEGATION	DELEGATE(S)	LEGAL AUTHORITY	CONDITIONS/RESTRICTIONS
25.	May temporarily close any highway or portion of a highway: a) for construction, repair or improvement of the highway or portion of the highway, or construction or repair or any works, under, over, along, across, or upon the highway or portion of highway; b) social, recreational, community, athletic or cinematographic purpose, or combination thereof; c) for any request under emergency services; For construction purposes when public safety may be impacted	Operations Superintendent		
26.	Temporary Reduction or Lifting of Load Limits on highways, including designation of alternate routes where applicable.	Operations Superintendent		
27.	Authority to declare a significant weather event in order to extend the response time to achieve Minimum Maintenance Standards	Operations Superintendent	Ontario Regulation 239/02 Minimum Maintenance Standards for Municipal Highways	
28.	Authority to approve the holding special events in Township-owned facilities/parks.	Municipal Administrator-Clerk-Treasurer		Upon notification of the Recreation Committee; Museum Board or special ad-hoc committee created for a municipal purpose

THE CORPORATION OF THE TOWNSHIP OF NIPISSING

BY-LAW NUMBER 2023-

Being a by-law to regulate the sale and disposition of municipal property.

WHEREAS the Municipal Act, 2001, c. 25 S270(1)1. provides that a municipality shall adopt and maintain policies with respect to the sale and other disposition of land;

NOW THEREFORE THE COUNCIL OF THE CORPORATION OF THE TOWNSHIP OF NIPISSING ENACTS AS FOLLOWS:

1. SHORT TITLE

1.1. This by-law may be cited as the "Sale and Disposition of Municipal Property By-Law".

2. PURPOSE/OBJECTIVE

2.1. The objectives of this by-law are:

2.1.1. to purchase and administer property only in support of municipal objectives;

2.1.2. to purchase, maintain, preserve and sell property to the maximum long-term economic advantage to the Township;

2.1.3. to ensure an efficient process for simple property sales and purchases by the Township;

2.1.4. to be transparent in the sale and purchase of property by the Township;

2.1.5. to ensure public accountability.

3. DEFINITIONS

3.1. "Abutting Land" means real property that directly borders the municipality's land parcel. In the case of the disposal of a closed highway, abutting land is considered real property that is immediately to the side of the closed highway.

3.2. "Appraisal" means a written opinion of the market value of the land prepared by a registered member of the Appraisal Institute of Canada, the assessed value as determined by the Municipal Property Assessment Corporation (MPAC), or other person(s) deemed by Council to be qualified for the purpose identified herein.

3.3. "Appraised Value" means the value noted in the appraisal, or the assessed value as determined by the Municipal Property Assessment Corporation (MPAC).

3.4. "Clerk" means the Clerk of the Township, including their successor and designate from time to time;

3.5. "Council" means the duly elected Municipal Council of the Corporation of the Township of Nipissing;

3.6. "Disposition" means the sale, transfer, conveyance or exchange of the Fee Simple Interest in Real Property, or the granting of a permanent easement or right of way, but does not include the granting of a short-term Lease or the release of easement or right of way by the Township. A lease of twenty-one (21) years or longer shall be considered a disposition. For clarity, "Sale" shall have a similar meaning.

3.7. "Fair Market Value" means the highest amount that real property might be expected to realize if sold in the open market by a willing seller to a willing buyer.

3.8. "Fee Simple Interest" means an ownership of Real Property in which the owner has the right to control, use or dispose of the Real Property at will.

3.9. "Highway" means a common and public highway and includes any bridge, trestle, viaduct or other structure forming part of the highway and, except as otherwise provided, includes a portion of a highway.

3.10. "Municipal Administrator" means the Municipal Administrator for the Township of Nipissing, including their successor and designate from time to time;

3.11. "Property" means land or real estate, including any improvements, structures and whatever is attached or affixed to the property and whatever grows on the land, that is owned by the Township or that is owned by its agencies, boards or committees and the jurisdiction for the sale of which rests with the Township;

3.12 "Township" means The Corporation of the Township of Nipissing.

4. EXCLUSIONS

This policy shall not apply to the following:

4.1. The sale of land under Part X1 (Sale of Land for Tax Arrears) of the Municipal Act, c. 25, S.O. 2001, as amended and any related Ontario Regulation made by the Minister.

4.2. Land transferred to the Township of Nipissing for security or for temporary roads or other works in connection with any agreement to which the municipality is a party under the Planning Act, R.S.O. 1990, c.P. 13;

4.3. Use of unopened road allowances belonging to the Township of Nipissing, as defined and with established policies under By-Law Number 2021-57.

4.4. Cemetery lots and lands designated for cemetery use by the Township of Nipissing (Funeral, Burial and Cremation Services Act, 2002 S.O. 2002, c.33);

4.5. Sale to public bodies:
- i) A municipality;
- ii) A local board including a school board and a conservation authority; and
- iii) The Crown in right of Ontario or Canada and their agencies.

5. GENERAL PROVISIONS

5.1. Prior to the disposal of any property by the municipality, the Council of the Township of Nipissing shall by Resolution declare the property to be surplus. Road allowance and shore road allowance will not require a declaration of surplus land.

5.2. A prospective purchaser may submit an expression of interest for particular Township-owned land(s) through a written request. This request will be received by Township Staff and presented to Council during a regularly scheduled Council meeting accompanied by a Staff Report providing information on compliance with municipal and provincial policies as appropriate.

The receipt of an expression of interest to purchase Township-owned lands does not obligate the Council to dispose of such lands.

5.3. The Township shall obtain a property valuation for a parcel to be considered. Any property valuation obtained shall be used solely as a guide and shall not be determinative of the terms of price upon which Council may sell any particular parcel. Without limiting the generality of the foregoing, other factors, including the history of the parcel or related properties, may be considered.

5.4. Notwithstanding the requirements outlined in Section 5.3., the Council shall have the absolute authority to determine the selling price of the land.

5.5. Method of Disposal shall be determined by Council in its sole discretion. Direction shall be provided by Resolution providing any of the following methods:

- Direct Sale/Negotiation
- Request for Tender (RFT)
- Listing with Real Estate Agent/Broker
- Land Exchange

5.5.1. Direct Sale/Negotiation

Direct sale and/or negotiation may be selected with the following considerations:

- The negotiated prices shall be determined to be not less than the appraised value plus costs as identified in section 7.1.
- The Municipal Administrator shall be authorized to negotiate a direct sale upon direction of Council by Resolution.
- The Municipal Administrator shall submit all final offers to Council for review.

5.5.2. Request for Proposal (RFP)

In accordance with the Township's Procurement Policy, Council may direct surplus lands be disposed of by a Request for Proposal (RFP) process.

5.5.3. Listing with Real Estate Agent/Broker

Listing by the Township or its agent with one or more property listing services may be selected with the following considerations:

- The listing price shall be determined to be not less than the appraised value plus costs as identified in Section 7.
- The Municipal Administrator shall be authorized to sign the listing agreement upon direction of Council by Resolution.
- The Municipal Administrator shall submit all final offers to Council for review.

5.5.4. Land Exchange

A land exchange involves a reciprocal transfer of land of an equivalent value (monetary or public interest) in whole or in part. Such exchanges may be negotiated with the following considerations:

- The negotiated price shall be determined to be not less than the appraised value plus costs identified in Section 7.
- The Municipal Administrator shall be authorized to negotiate a direct sale upon direction of Council by Resolution.
- The Municipal Administrator shall submit all final offers to Council for review.

6. ROAD ALLOWANCES/SHORE ROAD ALLOWANCES

6.1. The Township of Nipissing encourages the preservation of road allowances leading to the water, as provided in the Official Plan, Municipal Roads section.

6.2. The Township of Nipissing will not typically consider the stop up and closing of an unopened road allowance where the road allowance might potentially serve future development or where other land owners may be deprived of the sole vehicular access to their property or where the closure will result in conflicts with Township Official Plan policies, by-law regulations or procedures.

6.3. All costs incurred for the road closing are to be borne by the applicant.

6.4. Applications for the purchase of road allowance or shore road allowance shall be made using the document, Schedule "A", attached hereto and forming part of this by-law.

6.5. Applications to purchase shore road allowance which is adjacent to areas identified in the Township of Nipissing Official Plan as nesting areas, spawning areas, environmentally sensitive areas, and or areas where the public has or could have access to water may not be considered for sale. Council may request a detailed ecological study provided by a certified professional selected and contracted by the municipality. Such study shall indicate by a preponderance of evidence, that the proposed change is practical, necessary, attainable and beneficial. All costs of studies shall be borne by the Applicant, whether the application is approved or denied.

6.6. The Township will consider applications to close and sell minor portions of the shore road allowance, where applicable and as is required to legalize minor encroachments previously constructed by error in judgment.

6.7. An Administrative Fee for the submission of an application to purchase a Road Allowance or Shore Road Allowance will be applied per the current user fee by-law in effect. This fee will be non-refundable. A developer deposit shall be required for an application approved in principle by Council by Resolution. This amount shall be per the current user fee by-law in effect. This deposit shall be used for any legal costs, administrative and advertising fees, planning fees for the use of a professional planner, and or fees required for studies prepared in direct relation to the application.

6.8. Applicants must own property directly abutting the original shore road allowance. The Township will only convey to the adjacent landowner the portion of the shore road allowance above the controlled or normal high-water mark.

6.9. The applicant is responsible for making arrangements for the survey with an Ontario Land Surveyor. All costs associated with the survey are the responsibility of the applicant and are to be paid directly to the surveyor.

6.10. Where the Application is for the closing of a Shore Road Allowance, the final decision as to the direction in which the lot line extends across the road allowance rests with Council after input from the adjacent owners.

7. RECOVERY OF COSTS

7.1. All costs incurred or anticipated to be incurred to dispose of the land, including but not limited to, legal fees, surveying costs, appraisal fees, encumbrances, advertising and improvements, shall be borne by the purchaser.

8. ENACTMENT

This By-Law shall come into effect upon passage. Applications and or requests received after this date shall be governed by the procedures detailed in this by-law.
By-Laws 2008-1227, Sale of Land; 2007-1205, Development Expenses and 1196, Restating Council's Policy re Shore Road Allowances are hereby repealed.

That this By-law shall come into force and effect immediately on the passing thereof.

Read a first, second and third time and passed this 3rd day of January, 2023.

THE CORPORATION OF THE
TOWNSHIP OF NIPISSING

_____
Tom Piper,
Mayor

_____
Kris Croskery-Hodgins,
Municipal Administrator

Schedule "A" to By-Law Number 2023-

Township of Nipissing

Application to Purchase

Road Allowance OR Shore Road Allowance

Procedure

1. Application:

a) Submit a complete Application to the Township of Nipissing with payment of a $250 Application Fee.

b) Provide as much detail as possible including legal description of the property, copy of property deed for adjacent land owned by applicant, plan or sketch of request.

c) Review the Official Plan for the Township of Nipissing to determine if the request is within a designated area of interest such as spawning, deer yard, etc.

d) It is recommended that the applicant informs any adjacent owners to the subject land of the intentions of the application. This will also be done by the Township as part of the process.

2. Council Determination

a) Staff will receive the application and supporting documents. A review of the request will be performed with a staff recommendation provided to Council at the next appropriate Council meeting where the application will be placed on the Agenda.

b) Council will consider the application at the scheduled meeting. If finding in favour of the application, a Resolution of "Approval in Principle" will move forward and be sent to the Township solicitor for investigation and processing.

c) If Council does not support the application, the item will not be passed and the process will end.

3. Deposits – A Summary

a) Application fee $250.00
This is a Non-Refundable fee for preliminary investigation prior to the Application being placed on the Council Agenda.

b) Legal and Planning Deposit $2,500.00
This is a deposit to be held by the Township until the finalization of the application. This deposit will be used to cover legal fees, administrative fees, advertising costs, planning services required and the provision of any environmental studies required.

i) The File will be placed on hold until the deposit funds have been paid to the Township. This deposit is to be received by the Township within thirty (30) days of Council's "Approval in Principle".

4. Land Purchase Price

This is calculated on the basis of $25.00 per linear foot of lake frontage as measured and represented on the survey provided by a registered surveyor and filed with the Land Registry Office at the close of the file.

5. Survey Plan

Applicants are to instruct their surveyor to prepare a draft survey plan once the application has been "approved in principle" and the deposit has been paid to the Township. Instructions regarding the survey will be received from the Township

solicitor. The applicant is responsible for making arrangements for the survey with an Ontario Land Surveyor. All costs associated with the survey are the responsibility of the applicant and are to be paid directly to the surveyor.

NOTE: *If the Application is for the closing of a Shore Road Allowance, the final decision as to the direction in which the lot line extends across the road allowance rests with Council after input from the adjacent owners.*

6. Municipal Solicitor

The Township solicitor will give notice to the adjoining land owners, prepare a Public Notice for publication/posting, circulate letters to Bell Canada, Hydro One and Public Works Canada for clearance, prepare the by-laws required, investigate title of the property, and prepare a Transfer/Deed as well as provide information on any issues that may be encountered during each step.

7. Registration of Transfer

The final Transfer/Deed will be mailed to the applicant. It is recommended that the applicant have independent advice and take this Transfer/Deed to their solicitor for approval and arrange for their solicitor to register the document.

8. A Word of Caution

When the Township solicitor and planners do their investigation, sometimes the most unusual issues turn up and these have to be resolved which adds to the cost of the process. The most common issues are easements required by Hydro One or Bell Canada, but it could be title problems or objections by nieghbours. We will work with the applicant to keep them informed during the process of any issues.

NOTE: Savings may be realized if abutting owners apply jointly. The advertising fee would be a shared cost.

Township of Nipissing

Application to Purchase

____ Road Allowance ____ Shore Road Allowance

PLEASE PRINT

Name of Applicant:_____

Address of Applicant:_____

Phone Number:_____ Email:_____

Property Description of Subject Property:

_____

PIN Number of Subject Property:_____

Names of Adjacent Owners (If known):

1._____

2._____

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By signing below, the applicants acknowledge:

I acknowledge that by purchasing the Original Shore Road Allowance, it does not permit construction or alteration of any kind of structure, or shoreline improvements on the shoreline allowance or shoreline alterations without obtaining all applicable approvals. The Township of Nipissing Zoning By-Law requirements must be complied with.

Date: Signature of Applicant(s):

_____ _____

_____

I/We, _____, being the registered owner(s) of the lands subject of this application and, for the purposes of the Municipal Freedom of Information and Protection of Privacy Act, I/we hereby authorize the consent to the use by or the disclosure to any person or public body of any personal information that is collected under the authority of the Municipal Act or Planning Act (whichever Act applies) for the purposes of processing this application.

NOTE: All registered owners of the property must sign the Application for Shore Road Allowance Closing.

THE CORPORATION OF THE TOWNSHIP OF NIPISSING

BY-LAW NUMBER 2023-

Being a by-law to enter into an Agreement for a Municipal Facilities Maintenance Contract for the Township of Nipissing.

WHEREAS the Corporation of the Township of Nipissing wishes to enter into an Agreement for a Municipal Facilities Maintenance Person for the Township of Nipissing;

AND WHEREAS Randy Lockhart has indicated he would like to remain in this position for the next Contract term;

NOW THEREFORE the Council of the Corporation of the Township of Nipissing ENACTS AS FOLLOWS:

1. **That the Mayor and Municipal Administrator be authorized to sign the agreement attached hereto as Appendix "A" and hereby declared to be part of this by-law.**

2. **That By-Law No. 2018-50 is hereby rescinded.**

READ A FIRST, SECOND AND THIRD TIME AND PASSED THIS 3RD DAY OF JANUARY, 2023.

Mayor:

Municipal Administrator:

THE CORPORATION OF THE TOWNSHIP OF NIPISSING

BY-LAW NUMBER 2023-

Being a By-Law to provide for an Interim Tax Levy

WHEREAS Section 317 (1) of the Municipal Act, 2001, Chapter 25, Statutes of Ontario, 2001, provides that the Council of a local municipality may, in 2023 before the adoption of the estimates for the year, pass a by-law to levy on the whole of the assessment for real property according to the last revised assessment roll, a sum not to exceed the prescribed percentage, or 50 per cent if no percentage is prescribed, of the total amount of taxes for municipal and school purposes levied on the property for the previous year.

NOW THEREFORE the Council of the Corporation of the Township of Nipissing enacts as follows:

1. An interim tax payment, in the amount of 50 percent of the total amount of taxes for municipal and school purposes levied on the property for 2022, shall be levied on all property classes.

2. The said interim tax levy shall become due and payable on the 31st day of March, 2023.

3. On all taxes of the interim levy, which are in default on the 1st day of April, 2023 a penalty of 1.25 percent shall be added and thereafter a penalty of 1.25 percent per month will be added on the 1st day of each and every month the default continues, until December 31, 2023.

4. (a) On all taxes of the interim levy in default on January 1, 2024, interest will be added at the rate of 1.25 percent per month for each month or fraction thereof of default;

   (b) On all other taxes in default on January 1, 2024, interest shall be added at the rate of 1.25 percent per month or fraction thereof, and all by-laws and parts of by-laws inconsistent with the policy are hereby rescinded.

5. Penalties and interest added on all taxes of the interim levy in default shall become due and payable and shall be collected forthwith as if the same had originally been imposed and formed part of such unpaid interim tax levy.

6. The Collector may mail or cause the same to be mailed to the residence or place of business of such person indicated on the last revised assessment roll, a written or printed notice specifying the amount of taxes payable.

7. That taxes are payable at the Township of Nipissing Municipal Office, 45 Beatty Street, General Delivery, Nipissing, Ontario.

READ A FIRST, SECOND AND THIRD TIME AND PASSED THIS 3RD DAY OF JANUARY, 2023.

THE CORPORATION OF THE TOWNSHIP OF NIPISSING

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Tom Piper, Mayor

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Kris Croskery-Hodgins, Municipal Administrator